

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

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HECTOR LEDESMA and RICHARD LEDESMA,

Plaintiffs,

-against-

CITY OF NEW YORK, BRYAN SCHEBLEIN,
Individually, CHRISTINA MONCION, Individually,
and JOHN and JANE DOE 1 through 10, Individually,
(the names John and Jane Doe being fictitious, as the
true names are presently unknown),

Defendants.

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiffs' attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007BRYAN SCHEBLEIN
c/o NYPD 52nd Precinct
3016 Webster Ave.
Bronx, New York 10467CHRISTINA MONCION
c/o NYPD 52nd Precinct
3016 Webster Ave.
Bronx, New York 10467Dated: New York, New York
June 17, 2021BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiffs
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132By: Brett Klein
BRETT H. KLEIN

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

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HECTOR LEDESMA and RICHARD LEDESMA,

VERIFIED COMPLAINT

Plaintiffs,

Index No.:

-against-

Jury Trial Demanded

CITY OF NEW YORK, BRYAN SCHEBLEIN,
Individually, CHRISTINA MONCION, Individually,
and JOHN and JANE DOE 1 through 10, Individually,
(the names John and Jane Doe being fictitious, as the
true names are presently unknown),

Defendants.

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Plaintiffs HECTOR LEDESMA and RICHARD LEDESMA, by their attorneys, Brett H.
Klein, Esq., PLLC, as and for their verified complaint, respectfully allege as follows:

1. Plaintiff HECTOR LEDESMA is a fifty-year-old Hispanic male residing in New York County.
2. Plaintiff RICHARD LEDESMA is a twenty-two-year-old Hispanic male residing in New York County.
3. The cause of action alleged herein arose in the State of New York, County of the Bronx.
4. Defendant CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
5. Defendant CITY OF NEW YORK maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, CITY OF NEW YORK.

6. That at all times hereinafter mentioned, defendants BRYAN SCHEBLEIN, CHRISTINA MONCION, and JOHN and JANE DOE 1 through 10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

7. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

9. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

10. The cause of action alleged herein arose in the State of New York, County of Bronx.

11. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to, and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

12. Defendant CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

13. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

14. Plaintiff has complied with all conditions precedent to maintaining the instant action.

15. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

FACTS

16. On March 19, 2020, between approximately 9:00 p.m. and 9:30 p.m., in the vicinity of West Fordham Road and Cedar Avenue in the Bronx, plaintiff HECTOR LEDESMA was lawfully operating a 2008 White BMW with his son, plaintiff RICHARD LEDESMA, seated in the front passenger seat, when they were unlawfully pulled over by NYPD officers, including, without limitation, defendant NYPD officers BRYAN SCHEBLEIN and CHRISTINA MONCION.

17. At the aforementioned date, time and location, plaintiff HECTOR LEDESMA pulled over his vehicle after hearing NYPD sirens and observing an unmarked black car in his rear-view mirror.

18. Defendant MONCION then approached the driver side of the vehicle and ordered plaintiff HECTOR LEDESMA to turn off his vehicle and to produce his license and registration.

19. Plaintiff HECTOR LEDESMA complied with the order.

20. Thereafter, defendant MONCION unreasonably and otherwise needlessly ordered plaintiff HECTOR LEDESMA to step out of his vehicle.

21. Defendant SCHEBLEIN then proceeded to unlawfully search plaintiff HECTOR LEDESMA.

22. After needlessly and otherwise unjustifiably searching plaintiff HECTOR LEDESMA, and finding nothing warranting an arrest, defendant SCHEBLEIN nonetheless proceeded to arrest plaintiff in an overly aggressive manner by shoving plaintiff against his vehicle and twisting his right arm as he applied handcuffs to plaintiff's wrists, causing plaintiff to endure severe pain and discomfort.

23. Plaintiff HECTOR LEDESMA was then moved to the back of his vehicle.

24. After unlawfully detaining plaintiff HECTOR LEDESMA at the back of his car, defendant MONCION approached plaintiff RICHARD LEDESMA, who was seated in the passenger side of the vehicle.

25. RICHARD LEDESMA was lawfully recording the incident on plaintiff HECTOR LEDESMA's cellphone.

26. Defendant MONCION observed plaintiff RICHARD LEDESMA recording the incident and despite telling plaintiff that he was allowed to record the incident, defendant MONCION grabbed the cellphone from plaintiff's hands and slammed it against the vehicle's dashboard, causing damage to the phone screen.

27. Defendant MONCION then ordered plaintiff RICHARD LEDESMA to step out of the vehicle.

28. Plaintiff RICAHRD LEDESMA complied with the order and was subsequently arrested without cause or justification, and handcuffed in an overtight manner, searched, and then placed at the back of the vehicle next to plaintiff HECTOR LEDESMA.

29. Plaintiffs remained detained in a standing position at the back of plaintiff HECTOR LEDESMA's vehicle for approximately 20 to 25 minutes, during which time the defendant officers needlessly searched the vehicle.

30. Defendant officers again found nothing justifying an arrest or their unlawful arrests of the plaintiffs.

31. Defendant officers subsequently removed their handcuffs from the plaintiffs' wrists and told them they were free to go.

32. As plaintiff HECTOR LEDESMA was in his vehicle preparing to leave, he inquired about whether the defendants had returned to him his wallet and a sum of United States currency that he kept in his jacket pocket, which was searched by the defendant officers, and alerted the defendant officers of same.

33. After plaintiff HECTOR LEDESMA produced his jacket to the defendant officers to show them that the items were apparently missing, the defendant officers ordered plaintiff to step out of his vehicle and proceeded to maliciously, wrongfully and otherwise unreasonably detain and arrest him, apparently in retaliation for his lawful question regarding the status of his property.

34. Plaintiff HECTOR LEDESMA was then transported to the NYPD 52nd Precinct, and his vehicle remained at the scene of the incident with defendant NYPD officers.

35. Plaintiff HECTOR LEDESMA was detained at the 52nd precinct for approximately an hour and a half.

36. Plaintiff HECTOR LEDESMA was thereafter released from defendants' custody after he was maliciously issued a New York City Criminal Court summons which was sworn to by defendant SCHEBLEIN that falsely charged plaintiff with disorderly conduct. Plaintiff was also needlessly issued a traffic ticket due to defendant MONCION falsely alleging that he was double-parked.

37. Defendants SCHEBLEIN and MONCION initiated the aforementioned prosecutions against plaintiff HECTOR LEDESMA with malice, and otherwise caused said prosecutions to be commenced against plaintiff for the purpose of obtaining a collateral objective outside the legitimate ends of the legal process, to wit: to avoid being disciplined for the above-described abuses of authority and to otherwise meet summons and/or quota requirements.

38. Defendants SCHEBLEIN and MONCION created and manufactured false evidence against plaintiff HECTOR LEDESMA, which was conveyed to the Bronx County District Attorney's Office, the Bronx County Criminal Court, and the New York City Traffic Court, and which was likely used against him in the aforementioned legal proceedings. Specifically, the defendant officers made false claims that plaintiff HECTOR LEDESMA displayed violent and threatening behavior and double-parked his vehicle.

39. As a result of the defendants' misconduct, plaintiff HECTOR LEDESMA was subjected to criminal and traffic court prosecutions until the traffic violation was dismissed on or about June 1, 2020, and until the criminal court summons was dismissed and sealed in the Bronx County Criminal Court on or about May 19, 2021.

40. As a result of the excessive force used against plaintiffs during their arrests, plaintiff HECTOR LEDESMA sustained pain and bruising to his right arm for a number of days, and plaintiff RICHARD LEDESMA sustained pain and bruising to his wrists.

41. Defendants SCHEBLEIN, MONCION, and JOHN and JANE DOE 1 through 10 either directly participated in the above illegal acts, failed to intervene in them despite a meaningful opportunity to do so, or supervised and approved of, oversaw, and otherwise participated in the aforementioned misconduct.

42. Defendant NYPD officers SCHEBLEIN, MONCION and JOHN and JANE DOE 1 through 10 owed a duty to plaintiffs HECTOR LEDESMA and RICHARD LEDESMA to ensure their safety in their custody.

43. Defendant NYPD officers SCHEBLEIN, MONCION and JOHN and JANE DOE 1 through 10 breached their duty to plaintiffs HECTOR LEDESMA and RICHARD LEDESMA, resulting in plaintiffs sustaining the above described physical injuries while in their custody.

44. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training and supervising its employees; and pursuant to customs or practices of falsely arresting individuals, employing excessive force, falsification, lax investigations of police misconduct, covering up abuse by fellow officers/failure to intervene, and of issuing summonses for the collateral objective of meeting NYPD quota or performance or activity requirements.

45. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware from lawsuits, notices of claims, complaints filed with the NYPD's Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board, and extensive media coverage that many NYPD officers, including the defendants, are insufficiently trained regarding the use of force, engage in a practice of falsification, and falsely arrest individuals to cover up police abuse.

46. For instance, in another civil rights action against defendant City involving false allegations by NYPD officers, the late Senior Judge Jack B. Weinstein, sitting in the Eastern District of New York, pronounced:

Informal inquiry by the court and among judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. . . . [T]here is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged. *Colon v. City of New York, et. al.*, 2009 WL 4263362, *2 (E.D.N.Y. 2009).

47. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

48. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY of NEW YORK has retained these officers, and failed to adequately train and supervise them.

49. All of the aforementioned acts of defendants, their agents, servants and employees were carried out under the color of state law.

50. All of the aforementioned acts deprived plaintiffs HECTOR LEDESMA and RICHARD LEDESMA of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

51. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

52. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

53. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA sustained, *inter alia*, physical injuries, emotional distress and deprivation of his constitutional rights.

State Law Claims

AS AND FOR A FIRST CAUSE OF ACTION

(False Arrest under the laws of the State of New York Against All Defendants)

54. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “53” with the same force and effect as if fully set forth herein.

55. Defendants arrested plaintiffs HECTOR LEDESMA and RICHARD LEDESMA without probable cause.

56. Plaintiffs were detained against their will for an extended period of time and subjected to physical restraints.

57. As a result of the aforementioned conduct, plaintiff RICHARD LEDESMA was falsely arrested and detained, and plaintiff HECTOR LEDESMA was falsely arrested and unlawfully imprisoned, in violation of the laws of the State of New York.

58. As a result of the aforementioned conduct, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA suffered physical and emotional injury, and loss of freedom.

59. Defendant City, as employer of the individually named defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees.

AS AND FOR A SECOND CAUSE OF ACTION

(Assault under the laws of the State of New York Against All Defendants)

61. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “60” with the same force and effect as if fully set forth herein.

62. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA were placed in apprehension of imminent harmful and offensive bodily contact.

63. As a result of defendant's conduct, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

64. The individually named defendants assaulted plaintiffs. Defendant City, as employer of the each of the individually named defendant officers, is responsible for said officers' wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICAHRD LEDESMA are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION
(Battery under the laws of the State of New York Against All Defendants)

66. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered "1" through "65" with the same force and effect as if fully set forth herein.

67. Defendants made offensive contact with plaintiffs HECTOR LEDESMA and RICHARD LEDESMA without privilege or consent.

68. As a result of defendants' conduct, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

69. The individually named defendants battered plaintiffs HECTOR LEDESMA and RICHARD LEDESMA. Defendant City, as employer of the each of the individually named defendant officers, is responsible for said officers' wrongdoing under the doctrine of *respondeat*

superior.

70. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION
(Negligent Screening, Hiring, and Retention under the laws of the State of New York Against Defendant City)

71. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraph numbered "1" through "70" with the same force and effect as if fully set forth herein.

72. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who arrested, assaulted and battered, and manufactured evidence against plaintiff HECTOR LEDESMA, and who falsely arrested, assaulted and battered plaintiff RICHARD LEDESMA.

73. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

74. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A FIFTH CAUSE OF ACTION
(Negligent Training and Supervision under the laws of the State of New York Against Defendant City)

75. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in

paragraphs numbered “1” through “74” with the same force and effect as if fully set forth herein.

76. Upon information and belief, the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who falsely arrested, assaulted and battered plaintiff RICHARD LEDESMA, and who falsely arrested, assaulted, battered, and maliciously issued criminal process to plaintiff HECTOR LEDESMA and deprived him of his right to a fair trial.

77. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Negligence under the laws of the State of New York Against All Defendants)

78. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “77” with the same force and effect as if fully set forth herein.

79. Plaintiffs HECTOR LEDESMA and RICHARD LEDESMA’s injuries herein were caused by the carelessness, recklessness and negligence of defendant CITY OF NEW YORK and its employee defendants, who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

80. Defendant City, as employer of the defendant officers is responsible for their negligent acts under the doctrine of *respondeat superior*

81. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

Federal Claims**AS AND FOR A SEVENTH CAUSE OF ACTION**

(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983 Against the Individually Named Defendants)

82. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “81” with the same force and effect as if fully set forth herein.

83. Defendant officers arrested plaintiffs HECTOR LEDESMA and RICHARD LEDESMA without probable cause, causing them to be detained against their will for an extended period of time and subjected to physical restraints.

84. Defendant officers caused plaintiff RICHARD LEDESMA to be falsely arrested.

85. Defendant officers caused plaintiff HECTOR LEDESMA to be falsely arrested and unlawfully imprisoned.

86. As a result of the foregoing, plaintiffs are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION

(Excessive Force under 42 U.S.C. § 1983 Against the Individually Named Defendants)

87. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “86” with the same force and effect as if fully set forth herein.

88. Defendant officer SCHEBLEIN unreasonably shoved plaintiff HECTOR LEDESMA against his car and twisted his right arm in an overly aggressive manner, causing plaintiff to sustain pain, discomfort and bruising in said arm for a number of days, and otherwise used unreasonable force in violation of plaintiff’s constitutional rights.

89. Defendant officer MONCION applied excessively tight handcuffs to plaintiff RICHARD LEDESMA wrists, causing him pain, discomfort, and bruising to his wrists.

90. As a result of the aforementioned conduct of the defendant officers, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA were subjected to excessive force and sustained physical injuries and emotional distress.

91. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION

(Malicious Prosecution under 42 U.S.C. § 1983 against the Individually Named Defendants)

92. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "91" with the same force and effect as if fully set forth herein.

93. Defendants initiated, commenced and continued malicious prosecutions in traffic and criminal court against plaintiff HECTOR LEDESMA.

94. Defendants caused plaintiff HECTOR LEDESMA to be prosecuted without any probable cause until his summonses were dismissed on June 1, 2020 (traffic) on or about May 19, 2021 (criminal).

95. As a result of the foregoing, plaintiff HECTOR LEDESMA is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION

(Violation of Right to Fair Trial under 42 U.S.C. § 1983 against the Individually Named Defendants)

96. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in paragraphs numbered “1” through “95” with the same force and effect as if fully set forth herein.

97. Defendant officers reported false allegations against plaintiff HECTOR LEDESMA.

98. Defendant officers utilized this false evidence against plaintiff in legal proceedings.

99. As a result of defendants’ false allegations, which defendants conveyed to the Bronx County District Attorney’s Office and the Bronx County Traffic Court, plaintiff suffered a violation of his constitutional rights to a fair trial, as guaranteed by the United States Constitution, and was deprived of his liberty.

100. As a result of the foregoing, plaintiff HECTOR LEDESMA is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION

(Failure to Intervene under 42 U.S.C. § 1983 Against the Individually Named Defendants)

101. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered “1” through “100” with the same force and effect as if fully set forth herein.

102. Defendants had an affirmative duty to intervene on behalf of plaintiffs HECTOR LEDESMA and RICHARD LEDESMA, whose constitutional rights were being violated in their presence by other officers.

103. The defendants failed to intervene to prevent the unlawful conduct described herein.

104. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983 Against Individually Named Supervisory Defendants)

105. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "104" with the same force and effect as if fully set forth herein.

106. The supervisory defendants personally caused plaintiffs' constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

107. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983 against Defendant City of New York)

108. Plaintiffs repeat, reiterate and reallege each and every allegation contained in paragraphs numbered "1" through "107" with the same force and effect as if fully set forth herein.

109. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

110. The aforementioned customs, policies, usages, practices, procedures and rules of

the City of New York Police Department included, but were not limited to, unjustifiably arresting individuals, subjecting them to excessive force, and manufacturing evidence and otherwise engaging in falsification, thereby depriving individuals of their right to a fair trial. In addition, the City of New York engaged in a policy, custom or practice of inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiffs HECTOR LEDESMA and RICHARD LEDESMA's rights as described herein. As a result of the failure of the City of New York to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

111. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of plaintiffs HECTOR LEDESMA and RICHARD LEDESMA.

112. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiffs HECTOR LEDESMA and RICHARD LEDESMA as alleged herein.

113. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiffs HECTOR LEDESMA and RICHARD LEDESMA as alleged herein.

114. As a result of the foregoing customs, policies, usages, practices, procedures and

rules of the City of New York and the New York City Police Department, plaintiff RICHARD LEDESMA was unlawfully seized, detained, and searched, and subjected to physical injuries, and plaintiff HECTOR LEDESMA was unlawfully seized, detained, searched, incarcerated, prosecuted, and subjected to physical injuries.

115. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiffs RICHARD LEDESMA and HECTOR LEDESMA's constitutional rights.

116. All of the foregoing acts by defendants deprived plaintiffs of federally protected rights, including, but not limited to, the right:

- A. To be free from false arrest/unlawful imprisonment;
- B. To be free from unlawful search and seizures;
- C. To be free from excessive force;
- D. To receive a fair trial; and
- E. To be free from the failure to intervene.

117. As a result of the foregoing, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury.

WHEREFORE, plaintiffs HECTOR LEDESMA and RICHARD LEDESMA demand judgment and pray for the following relief, jointly and severally, against the defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual defendants in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper

Dated: New York, New York
June 17, 2021

BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiffs
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

By: Brett Klein
BRETT H. KLEIN

VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) ss:

HECTOR LEDESMA, being duly sworn, deposes and says that deponent is the Plaintiff in the within action; that deponent has read the foregoing Verified Complaint and knows the contents thereof; that the same is true to deponent's own knowledge, except as to matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes it to be true.



HECTOR LEDESMA

Sworn to before me this 17 day
of June, 2021.


Notary Public, State of New York

BRETT H. KLEIN
Notary Public, State of New York
No. 02KL6008072
Qualified in Nassau County
Commission Expires September 17, 2022

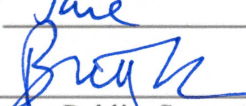
VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK) ss:

RICHARD LEDESMA, being duly sworn, deposes and says that deponent is the Plaintiff in the within action; that deponent has read the foregoing Verified Complaint and knows the contents thereof; that the same is true to deponent's own knowledge, except as to matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes it to be true.



RICHARD LEDESMA

Sworn to before me this 17th day
of June, 2021.

Notary Public, State of New York

BRETT H. KLEIN
Notary Public, State of New York
No. 02KL6008072
Qualified in Nassau County
Commission Expires September 17, 2022

SUPREME COURT STATE OF NEW YORK
COUNTY OF BRONX

-----X

HECTOR LEDESMA and RICHARD LEDESMA,

Plaintiffs,

-against-

Index No.:

CITY OF NEW YORK, BRYAN SCHEBLEIN,
Individually, CHRISTINA MONCION, Individually,
and JOHN and JANE DOE 1 through 10, Individually,
(the names John and Jane Doe being fictitious, as the
true names are presently unknown),

Defendants.

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SUMMONS AND VERIFIED COMPLAINT

BRETT H. KLEIN, ESQ., PLLC

Attorneys for the Plaintiffs

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